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# The Gazette of the Democratic Socialist Republic of Sri Lanka

## EXTRAORDINARY

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## PART I : SECTION (I) — GENERAL

### Government Notifications

L.D.B. 5/2011.

#### THE NATIONAL THOROUGHFARES ACT, No. 40 OF 2008

REGULATIONS made by the Minister of Highways and Investment Promotion under section 89(2)(c) of the Thoroughfares Act, No. 40 of 2008 read with sections 13 and 14 of the aforesaid Act.

KABIR HASHIM,  
Minister of Highways and  
Investment Promotion

Colombo,  
27th April, 2015.

#### Regulations

1. These Regulations may be cited as the National Thoroughfares (Colombo-Katunayake User Fee National Highway) Regulations No. 1 of 2015.

2. These regulations shall apply to the “Colombo-Katunayake User Fee National Highway” declared by Order made under section 11 of the National Thoroughfares Act, No. 40 of 2008 published in the *Gazette* Extraordinary No. 1831/31 of October 12, 2013.

3. (1) There shall be levied from a driver of every vehicle being used on the aforesaid User Fee National Highway, a user fee in respect of the use of such User Fee National Highway by such driver, at such rates specified in Part A of the Schedule to these regulations.



- (2) The user fee shall be charged in respect of the whole distance, or part thereof, of the User Fee National Highway.
  - (3) Different user fees may apply for different categories of vehicles.
  - (4) The user fee referred to in paragraph (1) shall be paid-
    - (a) manually by cash; or
    - (b) electronically through a device (hereinafter referred as “E-tag”) attached to the vehicle.
4. (1) An owner or driver of a vehicle who is desirous of making payments electronically (hereinafter referred as “E-tag user”) shall register with the Road Development Authority, established under the Road Development Authority Act, No. 73 of 1981, (hereinafter referred to as “the Authority”) and shall be required to open an Electronic Toll Collection System User Fee Account (hereinafter referred to as the “ETCS Account”) at the Customer Service Centre of the Authority.
- (2) Every application for registration as an E-tag user, shall be made to the Customer Service Centre of the Authority.
  - (3) Upon receipt of an application for registration the Authority may, on being satisfied with the information provided in the application including the information relating to the ETCS account, register such person as an E-tag user and issue him an E-tag for the purposes of these regulations.
  - (4) Every E-tag user shall enter into an Electronic Toll Collection System User Fee customer agreement (hereinafter referred to as the “ETCS customer agreement”) subject to the terms and conditions specified in such agreement.
  - (5) Every E-tag issued shall be fitted on to the windscreen of the vehicle.
  - (6) It shall be the duty of every E-tag user to maintain a sufficient credit balance in the ETCS Account at all times when using an Electronic user fee collection lane (hereinafter referred to as the “ETC lane”) enabling such person to make the payment of such user fee.
  - (7) In case of insufficient credit, the E-tag user may top-up the ETCS account and the processing time of such top-up shall be not less than one hour before the E-tag user may be able to use ETC lane.
  - (8) Every E-tag user shall ensure that the E-tag is in proper working order and shall inform the Authority of any damage or loss to such E-tag.
5. (1) Where an E-tag user with sufficient credit to pay the user fee, enters the User Fee National Highway from an interchange other than from a designated location, such E-tag user shall be permitted to proceed along the ETC lane of such interchange.
- (2) Where a vehicle fitted with an E-tag is being used on an ETC lane, the user fee shall be debited against the ETCS Account automatically and the E-tag user may obtain a statement in relation to the usage of such account from the Customer Care Centre of the Authority.
  - (3) Where an E-tag user, does not have sufficient credit to pay the user fee, such E-tag user shall divert his vehicle from the ETC lane to the manual user fee collection lane (hereinafter referred to as the “MUC lane”). The provisions of regulation 6 shall apply in relation to the payment of such fees.

6. (1) Where a driver of a vehicle which is not fitted with an E-tag enters the User Fee National Highway from an interchange other than from a designated location prior to being permitted to proceed along MUC lane, shall, obtain a ticket from the Teller on duty, manning the paying station at the gates of such interchange.
- (2) The driver of a vehicle referred to in paragraph (1) of this regulation, when arriving at a paying station of an interchange or a designated location for the purpose of exiting such User Fee National Highway shall-
  - (i) surrender the ticket obtained at the interchange through which he entered the User Fee National Highway, to the Teller at MUC lane ; or
  - (ii) inform the Teller at the designated location through which he entered the User Fee National Highway.
- (3) For vehicles using MUC lane, the Teller shall inform the driver of the amount of the fee payable and accordingly the driver shall pay such amount, prior to being permitted to pass through such interchange or designated location, and the teller shall issue a receipt in respect of such payment.
7. (1) A driver who has obtained a ticket referred to in Regulation 6 (1) shall be required to keep such ticket securely in his possession until he reaches the paying station of the interchange or the designated location through which he intends to exit such User Fee National Highway.
- (2) Where the driver is unable to-
  - (a) surrender the ticket; or
  - (b) fails to identify the location through which he entered the User Fee National Highway,

the driver shall be deemed to have travelled the entire distance of the User Fee National Highway and shall accordingly be charged for the entire distance of the User Fee National Highway.
8. (1) The Authority shall ensure that, for the purpose of implementation of the provisions of these regulations, a sufficient number of gates are positioned at the required places along the User Fee National Highway.
- (2) The gates so positioned along the User Fee National Highway shall be owned operated and maintained by the Authority, and each gate shall be manned by a Teller.
- (3) The Teller on the MUC lanes shall be responsible for the collection of the user fee at every gate referred to in paragraph (2), in such sum as is specified in Part A of the Schedule to these regulations from every driver using such User Fee National Highway:

Provided that the provisions of these regulations shall not apply to a driver who is driving a vehicle of a category specified in Part B of the Schedule to these regulations, which is exempt from such payment.

9. The Teller shall at such times as are specified, hand over the day's collection of the fees to the officer authorized in that behalf by the Authority and obtain a receipt in respect of such amount.
10. The money so collected as user fees shall be credited to the Fund of the Authority and be used for the purpose of developing and maintaining the User Fee National Highway to which these regulations apply.
11. The driver of a vehicle who contravenes the provisions of these regulations shall commit an offence and shall on conviction after summary trial by a Magistrate be liable in the case of-
  - (a) a first offence, to a fine not exceeding five thousand rupees; and
  - (b) a second or subsequent offence, to a fine not exceeding fifty thousand rupees.

12. For the purpose of these regulations-

“Designated location” means an authorized access point, where a driver of a vehicle is permitted to enter the User Fee National Highway without obtaining a ticket and includes New Kelaniya Interchange, Peliyagoda interchange, Katunayake interchange and Katunayake (25.80Km).

“E-tag” means an electronic device that is permanently installed on the windscreen of the vehicle for the purpose of payment of user fee electronically when passing through an Electronic User fee lane.

“Teller” means an officer who is manning the gates at an interchange or a designated location;

“User Fee National Highway” means the Colombo-Katunayake User fee National Highway.

13. The National Thoroughfares (Colombo-Katunayake User Fee National Highway) regulations No.1 of 2013 published in the *Gazette* Extraordinary No. 1832/28 of October 17, 2013 are hereby rescinded without prejudice to anything done thereunder.

SCHEDULE

PART A

(Regulation 3)

Colombo – Katunayake National Highway (CKE)

USER FEE RATES (Rs.) FOR CATEGORY 1 VEHICLES

|            | Distances between interchanges<br>14.58 km 7.56 km |        |            |
|------------|----------------------------------------------------|--------|------------|
|            | Peliyagoda                                         | Ja-Ela | Katunayake |
| Peliyagoda |                                                    |        |            |
| Ja-Ela     | 200                                                |        |            |
| Katunayake | 300                                                | 200    |            |

Category I vehicles shall include the following:-

| Cars                                                                                |                                                |
|-------------------------------------------------------------------------------------|------------------------------------------------|
|  | All types of cars                              |
|  | All types of jeeps                             |
|  | All saloon station wagons                      |
| Dual Purpose Vehicles                                                               |                                                |
|  | All cabs (single and double)                   |
|  | All passenger vans up to 9 seats               |
|  | All goods Vans and trucks up to GVW 3500 kg    |
| Light Motor Lorry                                                                   |                                                |
|  | Lorries and trucks having 2 Axles and 4 Wheels |

USER FEE RATES (Rs.) FOR CATEGORY 2 VEHICLES

|            | Distances between interchanges<br>14.58 km 7.56 km |        |            |
|------------|----------------------------------------------------|--------|------------|
|            | Peliyagoda                                         | Ja-Ela | Katunayake |
| Peliyagoda |                                                    |        |            |
| Ja-Ela     | 350                                                |        |            |
| Katunayake | 450                                                | 300    |            |

Category 2 vehicles shall include the following:-

| Light Motor Coaches                                                                |                                                     |
|------------------------------------------------------------------------------------|-----------------------------------------------------|
|  | Passenger van having seats more than 9              |
|   | All Buses having seats more than 9 and less than 33 |

USER FEE RATES (Rs.) FOR CATEGORY 3 VEHICLES

|            | Distances between interchanges<br>14.58 km 7.56 km |        |            |
|------------|----------------------------------------------------|--------|------------|
|            | Peliyagoda                                         | Ja-Ela | Katunayake |
| Peliyagoda |                                                    |        |            |
| Ja-Ela     | 400                                                |        |            |
| Katunayake | 600                                                | 300    |            |

Category 3 vehicles shall include the following:-

| Motor Coach                                                                          |                                                                        |
|--------------------------------------------------------------------------------------|------------------------------------------------------------------------|
|  | All Buses having seats more than 33                                    |
| Light Motor Lorry                                                                    |                                                                        |
|  | Lorries and Trucks having 2 Axles and 6 Wheels                         |
| Motor Lorry                                                                          |                                                                        |
|  | Lorries and Trucks having GVW more than 17000 kg (up to 3 axle trucks) |

USER FEE RATES (Rs.) FOR CATEGORY 4 VEHICLES

|            | Distances between interchanges<br>14.58 km    7.56 km |        |            |
|------------|-------------------------------------------------------|--------|------------|
|            | Peliyagoda                                            | Ja-Ela | Katunayake |
| Peliyagoda |                                                       |        |            |
| Ja-Ela     | 600                                                   |        |            |
| Katunayake | 800                                                   | 300    |            |

Category 4 vehicles shall include the following:-

| Heavy Motor Coach                                                                  |                                      |
|------------------------------------------------------------------------------------|--------------------------------------|
|   | Combination Buses                    |
| Heavy Motor Lorry                                                                  |                                      |
|  | All vehicles having 4 or more axles. |

Part B

VEHICLES EXEMPT FROM PAYMENT OF USER FEE ON THE  
COLOMBO - KATUNAYAKE NATIONAL HIGHWAY

1. All vehicles which forms part of the Presidential Convoy at any given time for so long as such vehicle is driven along the User Fee national Highway.
2. All vehicles which forms part of the Prime Ministerial Convoy at any given time for so long as such vehicle is driven along the User Fee National Highway.